

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

SIMPLE FORWARDING, INC., *Claimant*

v.

CHINA UNITED LINES LTD. AND NORTON LILLY
INTERNATIONAL, *Respondents*.

DOCKET NO. 2010(F)

Served: December 17, 2024

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING CLAIMANT’S MOTION FOR RELIEF FROM ORDER REQUESTING ADDITIONAL
INFORMATION AND ORDERING RESPONDENTS TO ANSWER**

On November 14, 2024, I issued an Order Requesting Additional Information and Ordering Respondents to Answer (“Order Requesting Information”). The Order Requesting Information ordered the parties to provide information necessary for the resolution of this matter on or before December 16, 2024. The Order Requesting Information also instructed Respondents to answer or otherwise respond to the Amended Complaint, or risk potential default. On December 13, 2024, Claimant filed a Motion for Relief from Order Requesting Additional Information and Ordering Respondents to Answer (“Motion for Relief”). As explained below, the Motion for Relief is **DENIED**.

I. Background

a. The Amended Complaint

On September 11, 2024, Claimant filed a Motion for Leave to Amend Complaint and Request for Return to Informal Adjudication, along with a proposed amended complaint (“Amended Complaint”). The proposed Amended Complaint alleged the following:

- Claimant is a shipper. (Amended Complaint, ¶¶ I and III.A).
- Respondent China United Lines Ltd AKA CULines is an OCC and Respondent Norton Lilly International is an NVOCC. (Amended Complaint, ¶¶ II(A) and (B)).
- Respondents imposed unjust and unreasonable per diem fees upon Claimant in violation of 46 U.S.C. § 41102(c). The fees, which totaled \$6,825, were apparently imposed because Claimant was unable to return a container from October 14, 2021, though November 3, 2021. (Amended Complaint, ¶¶ III.D-F).

- Claimant seeks a refund. (*See generally* Amended Complaint).
- Claimant attaches as exhibits an email dated February 1, 2023, as well as screenshots. (*See generally* Amended Complaint). There are no other exhibits attached.

b. Background – The Order Requesting Information

Pursuant to Commission Rule 314, I issued the Order Requesting Information on November 14, 2024. The Order Requesting Information seeks information or documents related to the following general topics: 1) whether China United Lines Ltd AKA CULines or Norton Lilly International is the correct Respondent; 2) whether Claimant paid the per diem fees; 3) the basis for Claimant’s arguments; and 4) background information about the underlying shipment, including the relevant parties, in order to understand any evidence or documents submitted.

In addition, the Order Requesting Information instructs Respondents to file an Answer no later than December 16, 2024. Finally, the Order Requesting Information instructs the Claimant and Respondents to respond to the information provided by the opposing party by December 30, 2024.

II. The Motion for Relief

On December 13, 2024, Claimant filed the Motion for Relief.¹

In the Motion for Relief, Claimant argues that the Order Requesting Information appears to be based on materials filed prior to the Amended Complaint. This is inappropriate because the materials filed before the Amended Complaint are unduly prejudicial. Therefore, the Order Requesting Information should be vacated to permit the case to proceed based on the most current legal and factual context. (Motion for Relief, at pp. 4-7, 9).

Claimant also objects to the Order Requesting Information to the extent it requires the Claimant to provide information at the same time it allows Respondents to answer the Amended Complaint. In short, Claimant argues that it will be required to respond to the order without first knowing the Respondents’ positions. Claimant argues that its compliance deadline should follow, not precede, the Respondents’ deadline. (Motion for Relief, at pp. 7-9).

III. Analysis

Claimant’s arguments are not persuasive.

As an initial matter, I have the authority to request additional information. The applicable procedural rule, 46 C.F.R. § 502.314, provides: “The administrative law judge may require the

¹ On November 14, 2024, Claimant’s representative sent an email to the Commission stating: “We acknowledge receipt of this email. However, we will be filing a motion for [...] default judgement and relief from this order; as there is no case to adjudicate. Respondents have admitted fault by not answering the complaint (multiple times), and the repeated and unfounded issuance of extensions to respond granted to uncooperative Respondents who refuse to acknowledge these proceedings and participate, is unfair and burdensome to Claimants; among other issues.”

submission of additional affidavits, documents, or memoranda from complainant or respondent.” Therefore, it is within my discretion to seek additional information from the parties.

Claimant argues that the Order Requesting Information: “. . . appears to rely on prior filings no longer applicable to the current Amended Complaint . . .” (Motion for Relief, at p. 1). This is not persuasive. The Amended Complaint, which is the operative pleading, does not provide me with enough information to decide this case. Indeed, even considering the entire case record, including documents filed before the Amended Complaint, I do not have enough information to decide this case. Therefore, I need more information to decide if the allegations in Claimant’s Amended Complaint are meritorious. The Order Requesting Information is an appropriate means for me to obtain the necessary information.

Claimant’s objection to the timing of the parties’ responses also lacks merit. Claimant characterizes the Order Requesting Information as requiring Claimant to provide information before knowing Respondents’ defenses. (Motion for Relief, at p. 8 (“This Order compels the Complainant to address issues not yet raised by the Respondents, which could contribute to procedural challenges and impact the fairness of the case.”)). This is inaccurate. The Order Requesting Information: 1) requires Respondents to answer or otherwise respond to the Amended Complaint by December 16, 2024, 2) requires all parties to respond to the requests for information by December 16, 2024, 3) allows all parties to reply to the other party’s response by December 30, 2024. Thus, Claimant had an opportunity to reply to Respondents’ evidence. Moreover, Claimant retains its right to reply to the Respondents’ answer within 20 days.² (46 U.S.C. § 502.313).

IV. Order

It is **HEREBY ORDERED** that Claimant’s Motion for Relief from Order Requesting Additional Information and Ordering Respondents to Answer is **DENIED**. It is

FURTHER ORDERED that the Respondent Norton Lilly International shall answer or otherwise respond to the Amended Complaint on or before **January 13, 2025**. It is

FURTHER ORDERED that Claimant and Respondents are to provide responses, information and documents as requested in the November 14, 2024, Order Requesting Additional Information and Ordering Respondents to Answer on or before **January 13, 2025**, and that each party may, at the same time, file any additional evidence or argument in support of its claims or defenses. It is

² Citing 46 C.F.R. § 502.62(6)(i), Claimant argues that Respondents waived any defenses by failing to answer timely. Commission Rule 62 does not apply to Subpart T. (46 C.F.R. § 502.321(b)).

FURTHER ORDERED that on or before **January 27, 2025**, each party may also file a reply to the other party's response.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2024.12.17
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Richard Ambrow
Administrative Law Judge